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CLERK OF THE COURT

IN THE UNITED STATES COURT OF APPEALS
FOR THE ARMED FORCES

UNITED STATES Appellee v. **Keith A. COOPER** Airman First Class (E-3) United States Air Force Appellant	**SUPPLEMENT TO PETITION FOR GRANT OF REVIEW** Crim. App. Dkt. No. ACM 40791 USCA Dkt. No. 26-0258/AF

TO THE JUDGES OF THE UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES:

SUPPLEMENT TO PETITION FOR GRANT OF REVIEW

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Issue Presented

Did Appellant's court-martial lack jurisdiction due to the military judges' lack of qualifications under Rule for Courts-Martial 502(c)(3) because they were not serving for a "term" of at least three years?

Statement of Statutory Jurisdiction

Airman First Class (A1C) Keith A. Cooper's approved sentence includes a dishonorable discharge. Accordingly, the Air Force Court of Criminal Appeals (AFCCA) had jurisdiction pursuant to Article 66(b)(3), Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 866(b)(3). A1C Cooper, Appellant, now invokes this Court's Article 67, UCMJ, 10 U.S.C. § 867, jurisdiction. Appellant, for the first time, challenges the trial court's jurisdiction to adjudicate his case. Jurisdiction is nonwaivable and can be raised at any time, Rule for Courts-Martial (R.C.M.) 907(b)(1), *Manual for Courts-Martial, United States* (*MCM*) (2024 ed.), giving this Court the ability to address this issue now.

Statement of the Case

A panel of members with enlisted representation sitting as a general court-martial convicted Appellant, United States Air Force, contrary to his pleas, of one specification of attempted sexual assault of child, in violation of Article 80, UCMJ, 10 U.S.C § 880. Trial Tr. 1, 53, 55, 59, 510. The military judge sentenced him to be reprimanded, to be reduced to the grade of E-1, to be confined for one year, and to be discharged with a dishonorable discharge. Trial Tr. 512, 549. The convening

authority to do anything but the findings or the sentence. Convening Authority Decision on Action (Oct. 28, 2024).

On June 16, 2026, the lower court affirmed the findings and sentence. No motion for reconsideration was filed. Appellant timely petitioned this Court for review on August 10, 2026, and moved to file the supplement to the petition subsequently. This Court granted the motion to file subsequently and set the filing deadline for this supplement as September 1, 2026.

STATEMENT OF FACTS

A. During Appellant's court-martial, multiple judges were detailed to preside over the proceedings.

Five military judges were detailed to Appellant's general court-martial. First, Judge Matthew P. Stoffel issued a Scheduling Order on May 18, 2023, App. Ex. I, and presided over Appellant's first arraignment at Canon Air Force Base, New Mexico, on May 24, 2023. Trial Tr. 1, 2, 8.

Second, Judge Lance R. Smith was detailed in place of Judge Stoffel. Trial Tr. 16. Judge Smith never presided over any court-martial session. *Id.* In the time he presided over Appellant's case, Judge Smith ordered "an inquiry into the mental capacity and mental responsibility of" Appellant, App. Ex. XIX, issued a protective order, App. Ex. XI, issued a revised scheduling order, App. Ex. XV, and made four motions rulings via email. App. Ex. VII; App. Ex. IX; App. Ex. XIV; App. Ex. XVII.

Third, Judge Lauren Torczynski was detailed in place of Judge Smith, arraigned Appellant again on June 20, 2024, and presided over the motions hearing. Trial Tr. 16, 16. Judge Torczynski ruled on three motions. App. Ex. XXV; App. Ex. XXVI; App. Ex. XXVII.

Fourth, Judge Brian Thompson was detailed to Appellant's court-martial in place of Judge Torczynski on September 24, 2024. App. Ex. XXVIII. Later that same day, a fifth military judge was detailed in place of Judge Thompson, Judge James P. Ferrell, App. Ex. XXIX. Judge Thompson remained involved as an observer. Trial Tr. 48. Judge Ferrell arraigned Appellant for a third time on September 30, 2024, and presided over the rest of the court-martial. Trial Tr. 59.

B. Assignment of Military Judges in the Department of the Air Force.

Since January 1, 2019, R.C.M. 502(c)(3) has provided that a "person assigned for duty as a military judge shall serve as a military judge for a term of not less than three years, subject to such provisions for reassignment as may be prescribed in regulations issued by the Secretary concerned." Nothing in the record of Appellant's trial indicates whether any of his five military judges were "serv[ing] as a military judge for a term of not less than three years." *Id.*; *see generally* App. Ex. I; App. Ex. XV; App. Ex. XXVIII; App. Ex. XXIX. Neither trial counsel nor trial defense counsel questioned any of the military judges about whether their assignment to serve as a military judge complied with R.C.M. 502(c)(3). See Trial Tr. 53.

military judges about (1) whether their assignment to serve as a military judge complied with R.C.M. 502(c)(3). *See* Trial Tr. 53.

R.C.M. 502(c)(3) acknowledges that the Secretaries of the military services may prescribe provisions for reassignment "in regulations." Indeed, the Secretary of the Air Force and his designees have issued many regulations for the Department of the Air Force, *see generally* DEPARTMENT OF THE AIR FORCE E-PUBLISHING, https://www.e-publishing.af.mil/ (last visited Aug. 31, 2026), including its Judge Advocate General's Corps. One of them, Department of the Air Force Instruction 51-101, *The Air Force Judge Advocate General's (AFJAG) Corps Operations, Accessions, and Professional Development* (20 June 2023, Incorporating Change 1, 22 January 2025) [hereinafter "DAFI 51-101"], provides:

> 11.6.1. Military judges will be assigned to the trial judiciary or Air Force Court of Criminal Appeals for a minimum of three years, except under the following circumstances:
>
> 11.6.1.1. The military judge voluntarily requests to be reassigned to other duties, and the request is consistent with mission needs;
>
> 11.6.1.2. The military judge is selected for promotion to the next higher grade and is assigned to duties commensurate with that grade;
>
> 11.6.1.3. The military judge is reassigned to other duties based on compelling needs of the service;
>
> 11.6.1.4. TJAG revokes the military judge's certification for good cause; or
>
> 11.6.1.5. The military judge retires or separates from the Service.

Id. at ¶ 11.6.1.

Argument

There is good cause to grant Appellant's petition for review because this case presents a question of law that has not been, but should be, settled by this Court. C.A.A.F. R. 21(b)(5)(A). This case offers a compelling vehicle for this Court to resolve whether the Air Force's assignment of military judges complies with the qualification

with the qualification standard the President established in R.C.M. 502(c)(3). This Court should address this issue now to give military justice practitioners a clear interpretation of R.C.M. 502(c)(3) and how a lack of compliance with that rule affects court-martial jurisdiction, encouraging necessary reform to this aspect of the military justice system.

This Court's consideration of this issue is particularly appropriate because it is not Air Force-specific. The Department of the Army has the same issue, relying on its admission to Mr. Fidell that "appointments [of military judges in the Army] are open ended, without pre-determined end dates." It would befitting for this Court to resolve this issue, since it affects at least two military departments—perhaps more.

same issue may exist in the Coast Guard and Department of the Navy, as well, whose FOIA responses to Mr. Fidell left uncertain the extent to which their courts-martial suffer from this jurisdictional defect. *See* DON FOIA Response; Coast Guard FOIA Response. It would be fitting for this Court to resolve this issue, since it affects at least two military departments—perhaps more.

I. Because Appellant's court-martial was composed incorrectly due to the military judges' lack of qualifications under R.C.M. 502(c)(3), it lacked jurisdiction under R.C.M. 201(b)(2) and its judgment is void.

A. A lack of preservation does not bar this Court from considering this jurisdictional defect and dismissing the charges against Appellant.

As a threshold manner, Appellant acknowledges that he did not raise this issue at trial nor on appeal to the AFCCA. But because this issue is jurisdictional, it may be raised for the first time on appeal. Jurisdictional challenges are "never waived and may be raised at any stage of the proceedings." *United States v. Reid*, 46 M.J. 236, 240 (C.A.A.F. 1997) (quoting *United States v. Reid*, 43 M.J. 906, 910 (A. Ct. Crim. App. 1996)); *see also* R.C.M. 907(b)(1).

This issue has been raised in several cases currently pending before the AFCCA, *see United States v. Robinson*, No. ACM 24044 (f rev); *United States v. Raines*, No. ACM 40765; *United States v. Young*, No. ACM 40762, and a comparable issue has been raised in at least one case pending before the Navy-Marine Corps Court of Criminal Appeals. *United States v. Lopez*, NMCCA No. 202500468. But it does not appear that any Court of Criminal Appeals has yet

the heart of his court-martial and the military judges who presided over it, it should be considered before Appellant's case becomes final. Appellant respectfully requests that his case be remanded to the JAG CAAF for consideration of this Assigned Issue. This goes to the heart of his court-martial and the military judges who presided over it, it should be considered before Appellant's case becomes final.

B. Standard of Review and Applicable Legal Test

"Jurisdiction is the power of a court to try and determine a case and to render a valid judgment." *United States v. Harmon*, 63 M.J. 98, 101 (C.A.A.F. 2006). Jurisdiction is a legal question that we review de novo. *Id.*

B. Standard of Review and Applicable Legal Test

"Generally, there are three prerequisites that must be met for courts-martial jurisdiction to vest: (1) jurisdiction over the offense, (2) personal jurisdiction over the accused, and (3) a properly convened and composed court-martial." *Id.* This case presents the question of whether a court-martial presided over by an officer who was not serving as a military judge for a "term" as required by R.C.M. 502(c)(3) was properly composed.

C. Summary of Argument

The President has decreed that "for a court-martial to have jurisdiction . . . [it] must be composed in accordance with these rules [R.C.M.s] with respect to number and qualifications of its personnel." R.C.M. 201(b)(2). Under this rule, "personnel" includes the "military judge." *Id.* Thus, whether a military judge satisfies the presidentially established qualification standards for a court-martial to be properly composed is a jurisdictional question. *Harmon*, 63 M.J. at 101. Because each of Appellant's military judges did not satisfy a qualification standard

Conclusion

Appellant requests that this Honorable Court grant review of his case to clarify the requirements of R.C.M. 502(c)(3) and to settle this jurisdictional question. Alternatively, Appellant requests that this Honorable Court remand his case to the AFCCA for its consideration of this jurisdictional defect.

Respectfully submitted,

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Dated: September 1, 2026

Certificate of Compliance

The undersigned counsel hereby certifies that: (1) this supplement complies with the type-volume limitation of Rule 21 because it contains 3,834 words; and (2) this supplement complies with the style requirements of Rule 37.

Certificate of Filing and Service

I certify that I electronically filed a copy of the foregoing with the Clerk of Court on September 1, 2026, and that a copy was also electronically served on the Air Force Government Trial and Appellate Operations Division at af.jajg.afloa.filng.workflow@us.af.mil on the same date.

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